

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR  
EXAMINERS AND THE COLORADO ADDICTION COUNSELOR PROGRAM

STATE OF COLORADO

CASE NOS.: 2011-004225 & 2011-004224

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STIPULATION AND FINAL AGENCY ORDER

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO  
PRACTICE PROFESSIONAL COUNSELING AND THE LICENSE TO PRACTICE  
ADDICTION COUNSELING IN THE STATE OF COLORADO OF SHELLEY DODD, LPC  
NO. 1800 AND LAC NO. 5,

Respondent.

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IT IS HEREBY STIPULATED by and between the Colorado Board of Licensed  
Professional Counselor Examiners ("Board"), the Colorado Addiction Counselor Program  
("Director") and Shelley Dodd ("Respondent") as follows:

1. The Board and Director have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Licensed Professional Counselor and Licensed Addiction Counselor in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Nos. 2011-004225 and 2011-004224. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board, Director or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
  - a. Respondent was KC's therapist from September 25, 2003 through December 23, 2003.
  - b. On or about December 24, 2003, Respondent terminated her therapeutic relationship with KC over the phone.
  - c. Following termination of the therapeutic relationship, Respondent had lunch with KC.
  - d. In early 2004, Respondent and KC "became a couple" and Respondent allowed KC to move into her home.

- e. Respondent and KC had a personal, sexual relationship for approximately one year, until it ended in January 2005.

5. By virtue of the facts admitted in paragraph 4 above, the Board and Director finds that Respondent violated §12-43-222(1)(g) and (r), C.R.S.

6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanction(s) that the Board and Director believe is necessary to protect the public health, safety, and welfare.

### **PROBATION**

7. Respondent's license to practice professional counseling and license to practice addiction counseling in the State of Colorado are hereby placed on probation for three (3) years commencing from the date this Order is fully executed or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a Professional Counselor and/or Addiction Counselor in Colorado, is being monitored by a practice monitor and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board and Director, and Respondent is responsible for establishing, to the satisfaction of the Board and Director, that she has satisfied all terms and conditions of probation.

### **PRACTICE MONITOR**

11. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's and Director's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

- b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline.

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. Respondent must have a practice monitor approved by the Board and Director within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

13. After the Board's and Director's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board and Director as a part of his/her first report to the Board and Director. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Board or Director determine from the practice monitor's evaluation that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board and Director determine, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's and Director's findings and the evaluation, the Board and Director will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board and Director find Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board and Director that she is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases including Respondent's supervision of all mental health providers, at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling and addiction counseling in accordance with generally accepted standards of practice and with skill and safety.

17. The practice monitor shall submit written reports to the Board and Director on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board or Director, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Board and/or Director have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board or Director meeting necessary to address the Board or Director's concerns. The Board or Director will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board or Director meeting.

19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board and Director, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling and addiction counseling.

20. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board and Director. If, in the Board's or Director's judgment, the practice monitor fails to perform the function specified by this Order, the Board or Director may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board and Director within 30 days.

21. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board and Director not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board and Director-approved practice monitor, who shall conduct her/his monitoring and report to the Board and Director in accordance with this Order.

#### **CONTINUING EDUCATION**

22. During the period of probation, Respondent must successfully complete at least twenty (20) hours each year of Board and Director-approved professional continuing education courses in the areas of dual relationships, ethics, boundaries, decision making, and transference. Respondent shall obtain Board and Director approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board and Director a certificate of completion.

### **TERMS AND CONDITIONS**

23. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

24. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

25. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board or Director.

26. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her practice monitor, therapy evaluator, or therapist to provide records and information obtained in the normal course of practice monitoring, therapy evaluation, or treatment to the Board and Director if the practice monitor, therapy evaluator, or therapist determines that Respondent is not practicing professional counseling and addiction counseling in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent explicitly waives her right to maintain confidentiality of records or information provided to the practice monitor, therapy evaluator, or therapist in the normal course of practice monitoring, therapy evaluation, or treatment if the practice monitor, therapy evaluator, or therapist determines that she is not practicing professional counseling and addiction counseling in accordance with generally accepted standards of practice or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.

27. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board and Director of the change of address within 30 days of the effective date of such change.

28. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

29. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board and Director order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

31. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board and Director Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

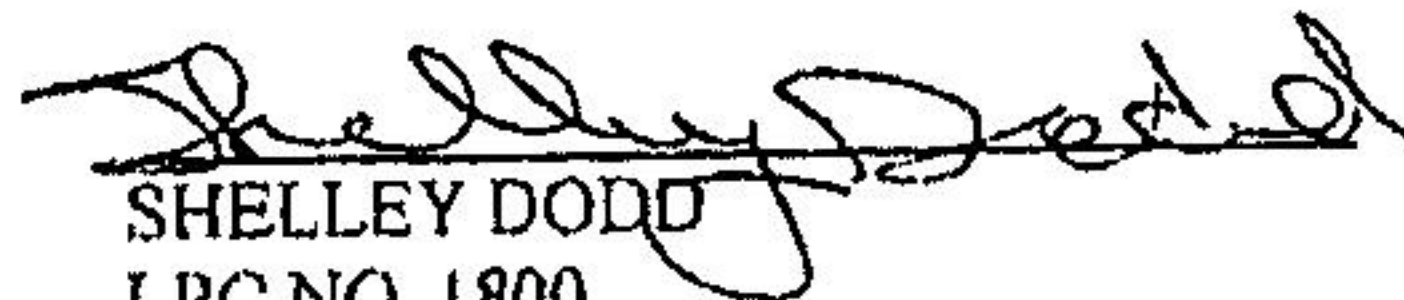
32. This Order constitutes the entire agreement between Respondent and the Board and Director. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

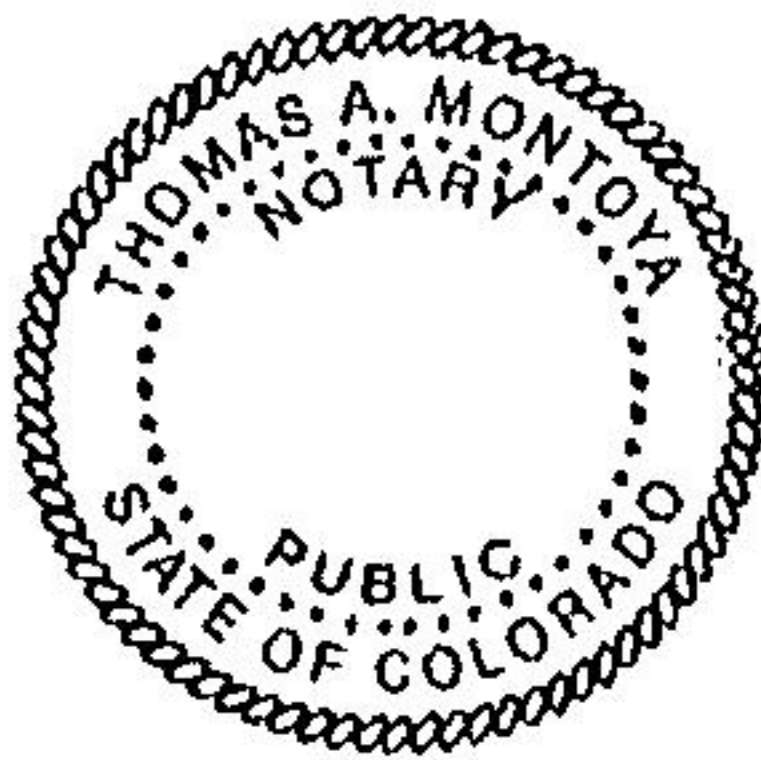
33. This Order shall become effective when accepted and signed on behalf of the Board and Director.

34. This Order shall be a public record in the custody of the Board and Director.

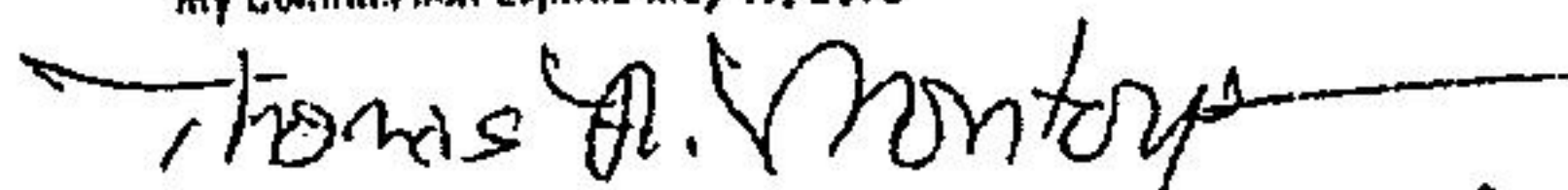
AGREED TO AND ACCEPTED BY:

RESPONDENT

  
SHELLEY DADD  
LPC NO. 1800  
LAC NO. 5

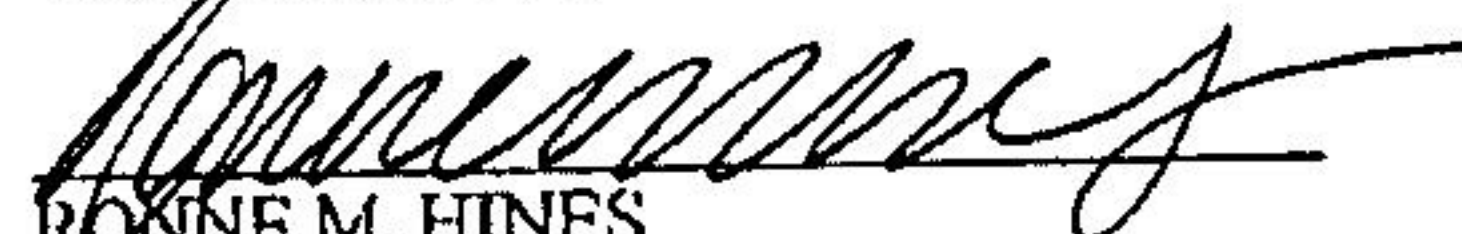


My Commission Expires May 17, 2015

  
(Notary for Shelly Dadd signature only)

AGREED TO AND ORDERED BY:

FOR THE COLORADO BOARD OF  
LICENSED PROFESSIONAL COUNSELOR  
EXAMINERS AND THE DIRECTOR OF  
THE DIVISION OF REGISTRATIONS

  
RONNE M. HINES  
Program Director  
Board of Licensed Professional Counselor  
Examiners  
Addiction Counselor Program

Effective Date: This 15<sup>th</sup> day of

February, 2012